

BIHAR/BHOJPUR/Bhojpur Cyber Police Station
Government of Bihar

Notice No:11082600500542

Date: 07/09/2026 23:25:52

Notification No. : G/Misc-10-12/2024-3095 Dated 10/04/2024

**ORDER FOR REASONED INTIMATION TO INTERMEDIARY FOR REMOVAL OR
DISABLING ACCESS TO UNLAWFUL INFORMATION AS PER S. 79(3)(b) OF THE
IT ACT, 2000 r/w RULE 3(1)(d) OF THE IT RULE, 2021**

Whereas, Section 79(3)(b) of the Information Technology Act, 2000 provides that the exemption from liability of intermediaries for third party information, data, or communication link made available or hosted by them shall not apply if upon receiving actual knowledge, or on being notified by the appropriate Government or its agency that any information, data or communication link residing in or connected to a computer resource controlled by the intermediary is being used to commit the unlawful act, the intermediary fails to expeditiously remove or disable access to that material on that resource without vitiating the evidence in any manner.

2. Whereas, Rule 3(1)(d) of the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021 (as amended from time to time) (hereinafter referred to as “IT Rules, 2021”) provides that an intermediary, on whose computer resource the information which is used to commit an unlawful act which is prohibited under any law for the time being in force in relation to the interest of the sovereignty and integrity of India; security of the State; friendly relations with foreign States; public order; decency or morality; in relation to contempt of court; defamation; incitement to an offence relating to the above, or any information which is prohibited under any law for the time being in force is hosted, displayed, published, transmitted or stored shall, upon receiving the actual knowledge under clause (b) of sub-section (3) of section 79 of the Act on such information, remove or disable access to such information within three hours of the receipt of such actual knowledge, and such actual knowledge shall arise only (i) by an order of a court of competent jurisdiction; or (ii) a reasoned intimation, in writing issued by an officer authorised, for the purpose of issuing such intimation, by the Appropriate Government or its agency.

3. Whereas, Rule 7 of the IT Rules, 2021 provides that where an intermediary fails to observe these rules, the provisions of sub-section (1) of section 79 of the Act shall not be applicable to such intermediary and the intermediary shall be liable for punishment under any law for the time being in force including the provisions of the Act and the Bhartiya Nyaya Sanhita 2023.

The undersigned has been designated as a Nodal Officer for the purpose of notifying the intermediaries in respect to unlawful information as per section 79(3)(b) of the IT Act, 2000 read with Rule 3(1)(d) of the IT Rules, 2021 (as amended from time to time).

4. And whereas, the BIHAR has found that the contents hosted or published on the GitHub intermediary platform at the following URLs is prohibited by law or being used to commit the unlawful act:

Sr. No.	IT Intermediary	URL/Page of Website/Content
1	GitHub	https://www.khanansoftbihargov.info/

Brief Summary of the unlawful act: This is in reference to BhojpurCyber Police Station, Dist.- Bhojpur, Bihar, India SDE No- 431/2026, dated-21.08.2026 An SDE has been lodged against some unknown persons for using these sites for misuse of government website to obtain money from public

Sr. No.	Reasons for holding the information unlawful.	Act Violated	Section / Rules
1	Security of State	Information Technology Act, 2000	79(3)

5. Now therefore, in accordance with the above-mentioned provisions of law, the intermediary GitHub is hereby notified to remove and disable access to the concerned URLs within 3 hours of the issue of this communication without vitiating the evidence in any manner.



This is a system-generated Notice; no signature is required.

To
GitHub